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Case Number: 25PSCV00237 Hearing Date: June 23, 2026 Dept: G

Defendants Ford Motor Co. and Colley Auto

Cars, Inc.’s Motion to Compel Compliance with the Court’s March 3, 2026 Order

and Request for Additional Monetary Sanctions

Respondent: NO OPPOSITION

TENTATIVE

RULING

Defendants

Ford Motor Co. and Colley Auto Cars, Inc.’s Motion to Compel Compliance with

the Court’s March 3, 2026 Order and Request for Additional Monetary Sanctions is

GRANTED.

BACKGROUND

This

is a Magnuson-Moss action arising out of the purchase of an allegedly defective

motor vehicle. On March 10, 2022,

plaintiffs Nicole Pittman and Arvell Pittman (collectively, the Pittmans) bought a used car manufactured by defendant Ford Motor Co. (Ford). The Pittmans allegedly brought the car to defendant Colley Auto Cars, Inc. (the Dealership), but they allegedly failed to repair the vehicle.

On January 22, 2025, the Pittmans filed the original Complaint. On April 18, 2025, the Pittmans filed the operative Amended Complaint, alleging causes of action for (1) violation of the Magnuson-Moss Warranty Act, (2) unfair business practices in violation of Business and Professions Code section 17200 et seq., and (3) negligent repair. On May 14, 2025, the court dismissed the second cause of action without prejudice.

On March 3, 2026, the court considered motions to compel responses filed by Ford and the Dealership (collectively, Defendants) and ordered the Pittmans to provide verified responses to form interrogatories, special interrogatories, and requests for production. On April 15, 2026, Defendants filed this motion for sanctions, which is unopposed.

The motion is set for hearing on June 23, 2026.

ANALYSIS

Defendants request monetary, evidentiary, issue, and terminating sanctions, in the alternative, based on the Pittmans’ failure to comply with the court’s March 3, 2026 order. For the following reasons, the court GRANTS the motion for monetary sanctions.

Legal Standard

The court may impose a monetary sanction, issue sanction, evidence sanction, terminating sanction, or contempt sanction on a party who engages in conduct that misuses the discovery process. (Code Civ. Proc., § 2023.030.) Misuse of the discovery process includes “[f]ailing to respond or to submit to an authorized method of discovery” and “[d]isobeying a court order to provide discovery.” (Code Civ. Proc., § 2023.010, subds. (d), (g).) Because the purpose of sanctions is remedial and not punitive, sanctions should “serve to remedy the harm caused to the party suffering the discovery misconduct.” (Kwan Software Engineering, Inc. v. Hennings (2020) 58 Cal.App.5th 57, 74.)

“[A]bsent unusual circumstances, nonmonetary sanctions are¿warranted only if a party willfully fails to comply with a court order." (Aghaian v. Minassian (2021) 64 Cal.App.5th 603, 618–619.) Terminating sanctions should only be ordered when there has been previous noncompliance and it appears a less severe sanction would not be effective. (Link v. Cater (1998) 60 Cal.App.4th 1315, 1326.)

Discussion

The court ordered the Pittmans to provide verified responses to form interrogatories, special interrogatories, and requests for production on or before March 13, 2026. (See 3/3/2026 Min. Order, p. 2.) According to Defendants, the Pittmans did not provide verified responses as ordered, nor did they pay the monetary sanctions associated with the motions to compel. (See Mot., Dizon Decl., ¶ 7.) Even though the Pittmans failed to provide verified responses, and in doing so, disobeyed the court's order, the record does not indicate that such failure to comply with the court's orders was willful. Thus, while monetary sanctions are appropriate for the misuses of the discovery process, nonmonetary penalties such as evidentiary, issue, and terminating sanctions are not appropriate at this point. (See Aghaian, supra, 64 Cal.App.5th at 618–619.)

Therefore,

the court GRANTS the motion for sanctions in the amount of $765.00.

CONCLUSION

For

these reasons, the motion to compel compliance and for sanctions is GRANTED. Plaintiffs Nicole Pittman and Arvell Pittman

are ORDERED (1) to provide verified responses to Form Interrogatories,

Set One; Special Interrogatories, Set One; and Requests for Production, Set

One; and (2) to PAY additional sanctions in the amount of $765.00

within 30 days of service of this order.